



CHAPTER clii.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Conisbrough Gas Elham Valley Gas Knottingley Gas and Thurles Gas. A.D. 1912.

[13th December 1912.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation (No. 1) Act 1912. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

3.—(1) The Undertakers named in the Thurles Gas Order hereby confirmed shall not under the powers of that Order Restriction
on power to
take houses

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
of working
class under
Thurles
Gas Order.

purchase or acquire any house or houses which on the fifteenth day of December last were occupied either wholly or partly by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board for Ireland any house or houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the said Undertakers acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board for Ireland by action in the High Court in Ireland and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that any court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artisans labourers and others not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

SCHEDULE.

A.D. 1912.

LIST OF ORDERS.

CONISBROUGH GAS.—Order empowering the Conisbrough Gas Company Limited to raise additional capital and for other purposes.

ELHAM VALLEY GAS.—Order authorising the construction of gasworks for the manufacture of gas for the supply of the parishes of Elham Lyminge Postling and Stanford in the county of Kent.

KNOTTINGLEY GAS.—Order authorising the Knottingley Gas Company to raise additional capital and for other purposes.

THURLES GAS.—Order empowering the Thurles Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas within the urban district of Thurles and adjacent parishes in the county of Tipperary and for other purposes.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

CONISBROUGH GAS.

Conisbrough. *Order empowering the Conisbrough Gas Company Limited to raise additional capital and for other purposes.*

Short titles. 1. This Order may be cited as the Conisbrough Gas Order 1912 and the Conisbrough Gas Order 1903 (in this Order referred to as "the Order of 1903") and this Order may be cited together as the Conisbrough Gas Orders 1903 and 1912.

*Commence-
ment.* 2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

*Incorpora-
tion of Acts.* 3. The provisions of the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 are incorporated with this Order (except where expressly varied by the Order of 1903 or this Order) and form part of this Order. For the purpose of its incorporation with the Order of 1903 and this Order section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every "such contract entered into by the Undertakers shall be alike in terms "and amount under like circumstances to all consumers" were added at the end of that section.

*Interpreta-
tion.* 4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking authorised by the Order of 1903 and this Order.

Undertakers.

Undertakers. 5. The Conisbrough Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

New Capital.

New capital. 6. The limitation prescribed by the Order of 1903 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

"the new capital") not exceeding eight thousand pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole twenty thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

A.D. 1912.
Conisbrough.

7.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

New shares
or stock to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of the rural district council of Doncaster and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
Conisbrough.

the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this Order and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of premium
arising on sale
of shares or
stock.

8. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limit of
dividend on
new capital.

9. Except as by section 13 of the Order of 1903 expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the new capital by this Order authorised to be raised than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Dividends on
different
classes of
shares or
stock to be
paid rateably.

10. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the existing and new capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

Limit of
borrowing
powers.

11. Notwithstanding anything contained in section 15 (Limit of borrowing powers) of the Order of 1903 the Undertakers may borrow

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

on mortgage of the undertaking any sum of money not exceeding one third of the amount of the capital of the Undertakers for the purposes of the undertaking at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of the Order of 1903 or this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

A.D. 1912.

Conisbrough.

Quality Testing and Pressure.

12. As from the first quarter day after the commencement of this Order sections 26 28 and 29 of the Order of 1903 shall be repealed and in lieu thereof the following provisions shall be in force and have effect (that is to say):—

(1) The prescribed number of candles shall not be less than fourteen :

(2)—(A) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871 ;

Quality of
gas.
Testing for
quality.

(B) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the Bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing ;

(C) The Undertakers shall before the first quarter day after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair :

(3)—(A) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in

Pressure.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
Conisbrough.

height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer ;

(B) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test :

Testing
place.

(4) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place which has been provided by the Undertakers at their works.

Miscellaneous.

As to construction and placing of pipes &c. between mains and meters.

13. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

(1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter so far as the same are intended to be covered over :

(2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with: A.D. 1912.
Conisbrough.

- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

14. The Undertakers may but only with the consent of the owner of the soil of any street laid out but not dedicated to public use on the application of the owner or occupier of any premises within the limits of supply of the Undertakers abutting on or being erected in any such street supply such premises with gas and may lay down take up alter relay and renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes where laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes in streets not dedicated to public use.

15. The Undertakers having first obtained the consent in writing of the local authority of the district may lay down place repair alter remove and renew mains pipes and culverts within their limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts. Power to lay down and; utilise pipes for ancillary purposes.

16.—(1) Whenever in the exercise of the powers of the sections of this Order the marginal notes whereof are "Power to lay pipes in streets not dedicated to public use" and "Power to lay down and utilise pipes for ancillary purposes" the Undertakers require to execute any work for the purpose of or in connection with the laying For protection of Dearne Valley Railway Company.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. down taking up alteration or removal of any mains pipes or apparatus
Conisbrough. upon across or under any railway for the time being belonging to or
worked by the Dearne Valley Railway Company (in this section
referred to as "the company") or the stations bridges approaches
or other works thereof or to construct any works in any street
adjoining thereto they shall give to the engineer of the company
fourteen days' notice in writing of their intention to carry out any
such works accompanied by sufficient plans.

(2) The said works including the making good and repairing
of any roads over the railway and over any bridges and approaches
which the company are or may be liable to maintain and which may
be disturbed or interfered with by or owing to any operations of the
Undertakers shall be laid constructed and executed by and at the
expense of the Undertakers under the superintendence (if the same
be given) and to the reasonable satisfaction of the said engineer and
according to plans to be previously reasonably approved by him and
so as to avoid as far as possible any injury to any such railway or
any of the works thereof and so as not to cause any interruption to
the passage or conduct of the traffic over or at any such railway or
station :

Provided that if the said engineer shall not within fourteen
days from the receipt of any such plan have approved or disapproved
thereof or signified his requirements in relation thereto he shall be
deemed to have approved thereof.

(3) When the Undertakers open or break up any road or pavement
of any street or bridge or other works belonging to or repairable
by the company the Undertakers shall with all convenient speed com-
plete the work for which the same shall be broken up and reinstate
and make good the road or works so opened or broken up.

(4) If the Undertakers make any unnecessary delay in completing
any such work or reinstating and making good any such road and
works so opened or broken up the company may cause the work so
delayed to be executed and the reasonable expense of executing the
same shall be repaid to them by the Undertakers.

(5) The Undertakers shall repay to the company the expense of
any temporary works or watching which the company may reasonably
consider necessary to provide for the protection of any such railway
or the traffic thereon during the carrying out of any such works as
aforesaid.

(6) If in the execution of the works any injury shall arise to any
such railway or works or interruption to such traffic the Undertakers
shall make full satisfaction in respect thereof to the company and the
amount of such satisfaction in the case of dispute shall be determined
by arbitration in manner hereinafter provided.

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

(7) Any difference which may arise between the Undertakers and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

A.D. 1912.
 Conisbrough.

17. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Anti-fluctua-
 tors for gas
 engines.

18. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or to continue to receive from the Undertakers a supply of gas for any premises for which he has at the same time a supply of gas from an installation other than that of the Undertakers unless he shall have agreed to pay to the Undertakers such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply of
 gas where
 consumer
 has separate
 supply.

19.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
 gas supplied
 by means of
 prepayment
 meters.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 Geo. 5.]*
Act, 1912.

A.D. 1912.

Conisbrough.

(3) The Undertakers shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Undertakers in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Amending
paragraph (3)
Schedule B.
of Order of
1903.

20. For the purposes of an order made by the Board of Trade in pursuance of the provisions of section 27 (Price of gas) of the Order of 1903 Schedule B. of the Order of 1903 shall be read as if in lieu of paragraph (3) (If profits exceed amount limited excess may be invested and form an insurance fund) of such schedule there had been inserted therein the following provisions with respect to the creation of a special purposes fund:—

- (1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund":
- (2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—
 - (A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or
 - (B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works:
- (3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums:
- (4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other :

A.D. 1912.
Conisbrough.

- (5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

21. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
 Order.

ELHAM VALLEY GAS.

Order authorising the construction of gasworks for the manufacture of gas for the supply of the parishes of Elham Lyminge Postling and Stanford in the county of Kent.

Elham Valley.

1. This Order may be cited as the Elham Valley Gas Order 1912.
2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."
3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order or are inconsistent with this Order) Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also" that every such contract entered into by the company shall be alike "in terms and amount under like circumstances to all consumers" were added at the end of that section.
4. In this Order "the authorised rates" means the rates of dividend authorised on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings And in the construction of this Order or of any

Short title.

Commence-
 ment.

Incorpora-
 tion of Acts.

Interpreta-
 tion.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. such Act for the purposes of this Order the expression "the under-
Elham Valley. taking" shall include the gasworks and works connected therewith by
this Order authorised to be constructed.

Limits of 5. The limits within which the provisions of this Order shall be
Order. in force and have effect (in this Order referred to as "the limits of
supply") shall be the parishes of Elham Lyminge Postling and
Stanford in the rural district of Elham all in the county of Kent.

Undertakers.

Undertakers. 6. John Francis Kelley of The Homestead Sutton Surrey gentleman
and Cornelius Brittiffe Tully of Hythe Kent gas engineer and their
heirs executors administrators and assigns shall be the Undertakers
for the purposes of this Order and are in this Order referred to as
"the Undertakers" Provided always that the powers conferred by
this Order shall not be exercised unless and until a company shall have
been formed and duly constituted under the Companies (Consolidation)
Act 1908 for the purpose of carrying on the undertaking and exercising
the powers authorised by this Order and as from the date of the transfer
of the undertaking to such company that company shall be the
Undertakers for the purposes of this Order in lieu of the person or
persons above mentioned but no such transfer shall have any validity
or effect until after the approval of the Board of Trade to such transfer
has been signified in writing signed by a secretary or assistant secretary
of the said Board.

Capital.

Capital. 7. The capital of the Undertakers shall not for the purposes of
the undertaking authorised by this Order exceed twelve thousand
pounds unless the Undertakers are hereafter authorised to raise
additional capital by Provisional Order under the Gas and Water
Works Facilities Act 1870 or by Act of Parliament.

Borrowing 8. The amount of all moneys which the Undertakers may borrow
powers. and secure by mortgage of the undertaking shall not at any time exceed
in the whole one third part of the capital of the Undertakers at the
time actually raised by the creation and issue of shares or stock and
except with the sanction of the Board of Trade no higher rate of
interest than five pounds per centum per annum shall be paid by the
Undertakers in respect of any moneys borrowed by them and secured
as aforesaid after the commencement of this Order.

Purchase of Lands &c.

Power to 9. The Undertakers may for the purposes of the undertaking (by
purchase agreement but not otherwise) purchase or take on lease and hold in
land by addition to the lands described in Schedule A. to this Order annexed
agreement.

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

any lands and hereditaments not exceeding in the whole three acres which the Undertakers may from time to time require for the purposes of the undertaking Provided that the Undertakers shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing or storing gas or residual products except the lands described in Schedule A. to this Order annexed.

A.D. 1912.

Elham Valley.

Construction of Gasworks and Manufacture and Sale of Gas Coke and Residual Products.

10. The Undertakers on the lands shown on the map deposited for the purposes of this Order and described in Schedule A. to this Order annexed while they are possessed of the same may construct erect and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storage of gas and of coke and other residual products obtained in the manufacture of gas by them and matters producible therefrom and they may subject to the provisions of this Order upon the said lands make and store gas and supply and sell the same within the limits of supply and may convert manufacture and sell all residual products resulting from the manufacture of gas and matters producible therefrom and they may construct and maintain alter extend enlarge and renew or discontinue houses offices buildings and other works connected with the undertaking by this Order authorised.

Under-takers may construct gasworks on lands described in Schedule A and may make and sell gas &c.

11. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (hereinafter respectively referred to as "the railway company") the following provisions shall (unless otherwise agreed) apply and have effect (that is to say):—

For protection of South Eastern Railway Company and South Eastern and Chatham Railway Companies Managing Committee.

- (A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes culverts or other works in the exercise of the powers contained in this Order upon across over under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by such engineer in writing:

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

Elham Valley.

- (B) All such works shall be done by and at the expense of the Undertakers (except as in this section otherwise provided) who shall also restore and make good to the reasonable satisfaction of the said engineer the railways lands roads and property including the roads over or under any bridge or over any level crossing of the railways of the railway company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers Provided always that should the railway company elect so to do where any mains or pipes are required to be laid under or across any level crossing of their railways they may themselves lay the same and the reasonable costs charges and expenses thereof shall be paid by the Undertakers:
- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:
- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any such mains culverts pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station lands works or property of the railway company the Undertakers shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereafter provided:
- (e) If the railway company at any time or times hereafter of which they shall be the sole judges require to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts roads or works upon across over or under which any of the works of the Undertakers may have been constructed or laid the railway company may on giving to the Undertakers fourteen days' notice in writing under the hand of their secretary or general manager for the time being and in case of emergency without notice divert support or carry the said works of the Undertakers across over or under their lands railways bridges roads or works at any other point or

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversions supporting carrying or dealing with such works. Provided always that such diversions supporting carrying or dealing with such works shall be carried out in all respects at the expense of the railway company and to the reasonable satisfaction of the engineer for the time being of the Undertakers who shall for this purpose be permitted at all times to enter upon the lands railways bridges roads or works of the railway company to examine the state and condition of such diversions supporting carrying or dealing with such works :

A.D. 1912.

Elham Valley.

- (F) Except as in this section otherwise provided any dispute or difference which may arise between the railway company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Undertakers or either of them.

12. Any alteration repair or improvement of any main road or any of the bridges and the approaches thereto repairable by the Kent County Council in the parishes or places within the limits of supply or any alteration of or in the position of the same may be made as if this Order had not been made and if any such alteration repair or improvement necessitates any alteration either temporary or permanent in the level or position of any of the mains pipes or works of the Undertakers laid in such parishes or places or placed in or under such main road or in or over or through any of the bridges or approaches aforesaid or necessitates any support either temporary or permanent to any such mains pipes or works the Undertakers shall after fourteen days' notice in writing by the county surveyor on behalf of the said county council forthwith make such alteration or afford such support at their own expense.

For protection of Kent County Council.

13. The following provisions for the protection of the Elham Rural District Council (in this section referred to as "the council") shall have effect unless otherwise agreed between the Undertakers and the council (that is to say):—

For protection of Elham Rural District Council.

- (1) All mains pipes and works to be laid in or along any road or street in or upon or across any bridge belonging to the council shall be laid in such position in or at the side thereof as the council in writing under the hand of their surveyor may reasonably direct :

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
Elham Valley.

- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be sufficient and except in cases of emergency) as regards any such road street or bridge be not less than seven days instead of three days:
- (3) The plan required by section 9 of the last-mentioned Act if demanded by the said surveyor in writing shall as regards any such road street or bridge be on a scale of not less than six inches to a mile and shall be accompanied by sections to suitable scales to show clearly the proposed works and shall (except in cases of emergency) be delivered to the said surveyor by the Undertakers not less than seven days before the Undertakers commence to open or break up such road street or bridge and if the said surveyor shall not within seven days after the plan has been delivered to him express his disapproval and his requirements in relation thereto the council shall be deemed to have approved thereof:
- (4) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any such bridge without the consent in writing of the said surveyor. Such consent shall not be unreasonably withheld and may be given upon such conditions as the council may reasonably determine:
- (5) All works shall be so executed by the Undertakers as not (without the consent in writing of the council) to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road street or bridge or the approaches thereto and the Undertakers shall not break up a greater consecutive length than one hundred yards of any such road or street and where they break up any road or street in more places than one at any one time they shall leave a length of one hundred yards of road or street between the lengths which they are breaking up:
- (6) The Undertakers shall pay to the council the reasonable costs which the council may incur in the repair and reinstatement of so much of any such road street bridge or approaches in which the mains pipes or other works of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes or other works:
- (7) If the Undertakers in the execution of any works in or affecting any such road street bridge or approaches as

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

aforesaid shall cause any damage injury or disturbance to such road street bridge or approaches and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the council after fourteen days' notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the council all costs charges and expenses which the council shall reasonably and properly incur in carrying out such works including all reasonable expenses of superintendence:

A.D. 1912.

Elham Valley.

- (8) If any difference arises at any time between the council and the Undertakers touching the foregoing provisions of this section or anything to be done or not to be done thereunder or the giving or withholding of any such consent or the conditions of giving the same or any direction such difference shall be determined by arbitration by an engineer to be agreed upon between the council and the Undertakers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 or any statutory modification thereof shall apply to any such arbitration.

14. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon any road under the jurisdiction of such road authority or in over or upon such lands or works or the facilities to be afforded for the same the same unless otherwise by this Order provided shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences with road authorities railway or other companies.

Testing Place.

15. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Undertakers at their gasworks before commencing to supply gas under the powers of this Order.

Testing place.

Pressure of Gas.

16.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of gas.

Pressure of gas.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. water not less than eight-tenths of an inch in height at the main
Elham Valley. or as near as may be to the junction therewith of the service pipe
supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Quality of Gas.

Quality of
gas.

17.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the metropolitan argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Undertakers shall before commencing to supply gas under the powers of this Order provide at their works a testing place and all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Price of Gas.

Fixing
maximum
price of gas.

18. The price to be charged by the Undertakers for gas supplied by them shall not exceed five shillings per thousand cubic feet and so on in proportion for any less quantity supplied. Provided that at any time after the expiration of five years from the commencement of this Order the Board of Trade may if they think fit by order in writing signed by a secretary or an assistant secretary of the said Board alter the said maximum price either by substituting any other sum for the said sum of five shillings or by fixing a standard price with sliding scale as to profits and as from the date specified in such order (in this Order referred to as "the specified date") the price to be charged by the Undertakers for gas supplied by them shall be in accordance with such order and in the latter alternative

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

the provisions set forth in Schedule B shall be in force and have effect and this Order shall be read and construed accordingly A copy of any such order shall be published in the London Gazette and a copy of the said Gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

A.D. 1912.
Elham Valley.

Miscellaneous.

19. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was caused by circumstances beyond the control of the Undertakers Provided that the want of sufficient funds shall not be held to be a circumstance beyond the Undertakers' control.

No penalty
in case of
unavoidable
cause.

20. Where any money is deposited by any person by way of security with the Undertakers for the payment to them of all moneys which may become due to them by such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of five pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Undertakers
to pay
interest on
deposit.

21.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

Power to
supply gas
fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

22.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so

[Ch. ciii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:
Elham Valley.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The Undertakers shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Undertakers in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Power to
lay pipes in
streets not
dedicated
to public
use.

23. The Undertakers may but only with the consent of the owner of the soil of such street or road on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
contract for
sale of gas
in bulk.

24. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

Gas con-
sumers to
give notice to
Undertakers
before
removing.

25. Twenty-four hours' notice shall be given to the Undertakers by every gas consumer in writing or in person at the Undertakers' office before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

A.D. 1912.
Elham Valley.

26. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers.

Notice of discontinuance.

27. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

Period of error in defective meters.

28. If a person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Undertakers without paying all gas or meter rent or rents for stoves or other apparatus due from him the Undertakers may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other property.

29. Section 140 of the Companies Clauses Consolidation Act 1845 shall be and is hereby incorporated with this Order Provided that for the purpose of such incorporation the expression "the company" in the said section shall be construed to mean the Undertakers.

Incorporation of section 140 of 8 Vict. c. 16.

30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

SCHEDULE A.

SITE OF GASWORKS.

A piece of land containing by admeasurement $3\frac{3}{4}$ acres or thereabouts situate at Lyminge in the rural district of Elham in the county of Kent belonging or reputed to belong to Richard Hogben numbered 455 on the 25-inch Ordnance map for the parish of Lyminge bounded on the north and east by other land belonging or reputed to belong to the said Richard Hogben on the west by the South Eastern and Chatham Railway and on the south by a bridle road leading from Lyminge to Shuttlesfield.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

Elham Valley.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following:—

Sections 30 to 34 of Gasworks Clauses Act 1847 to cease to be incorporated.

I. Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section 35 of the said Act shall be read and construed as though the words from “in case the whole” down to “have been paid” all inclusive had been omitted therefrom and as though the expression “the prescribed rate” included the authorised rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the special purposes fund.

Price of gas with sliding scale as to dividend.

II. Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet:

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary capital of the Undertakers as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds;

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price has been reduced be increased above the standard rates of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

III.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called “the special purposes fund.”

A.D. 1912.
Elham Valley.
 Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one tenth of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

IV. If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year:

Application of excess of profits over authorised rates of dividend.

Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates.

V. Where in any year the dividend of the Undertakers on the ordinary share capital or stock of the Undertakers shall exceed the standard rate by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the amount of the divisible profits of the Undertakers applicable to the payment of such excess of dividend the Undertakers may in such year set apart such sum as they think fit and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar

Power to create a reserve fund and application thereof.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. character of the Undertakers existing at the specified date in relation to the undertaking may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the dividend at the authorised rates on the ordinary capital of the Undertakers and save as by this schedule specially provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund.

Saving of
existing
contracts.

VI. Nothing in this schedule contained shall alter vary or affect any contract or agreement duly made or any liability incurred or notice given before the specified date with respect to the gasworks of or the supply of gas by the Undertakers.

KNOTTINGLEY GAS.

Knottingley. Order authorising the Knottingley Gas Company to raise additional capital and for other purposes.

Preliminary.

Short titles.

1. This Order may be cited as the Knottingley Gas Order 1912 and the Knottingley Gas Act 1856 (in this Order referred to as "the Act of 1856") and this Order may be cited together as the Knottingley Gas Act and Order 1856 and 1912.

Commence-
ment of
Order.

2. Except where otherwise provided this Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorpora-
tion of
general Acts.

3. So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Acts 1845 to 1889 with respect to the following matters (that is to say):—

The distribution of the capital of the company into shares;

The transfer or transmission of shares;

The payment of subscriptions and means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the company against the shareholders;

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

The borrowing of money by the company on mortgage or bond ; A.D. 1912.
The consolidation of the shares into stock ; *Knottingley.*
The general meetings of the company and the exercise of the
right of voting by the shareholders ;
The making of dividends ;
The giving of notices ; and
The provision to be made for affording access to the special Act
by all parties interested ;

Part I. (relating to cancellation and surrender of shares) Part II.
(relating to additional capital) and Part III. (relating to debenture
stock) of the Companies Clauses Act 1863 the Companies Clauses Act
1869 as amended by subsequent Acts are hereby incorporated with
this Order and except where the same are expressly varied by the
Act of 1856 or this Order form part of this Order.

The Gasworks Clauses Act 1847 (except sections 31 to 34) and the
Gasworks Clauses Act 1871 so far as the same are applicable for the
purposes of and are not inconsistent with or varied by the provisions
of the Act of 1856 or this Order are incorporated with and form
part of this Order. And the said Gasworks Clauses Acts as so incor-
porated with this Order shall apply to the existing gas undertaking of
the Undertakers. Provided that section 13 of the Gasworks Clauses
Act 1847 shall be read as if the words "or any premises" were
inserted after the words "private building" and as if the words
"Provided also that every such contract entered into by the Company
shall be alike in terms and amount under like circumstances to all
consumers" were added at the end of that section and also that
section 35 of such Act shall be read and construed as if the words
from "in case the whole" down to "have been paid" were omitted
therefrom and as though the expression "the prescribed rate" included
the authorised rates as defined by this Order together with any sum
which under the provisions of this Order may be carried to the special
purposes fund.

For the purposes of such incorporation the term "special Act" in
the said Acts shall mean this Order and the term "the company"
shall mean the Undertakers.

4. In this Order the several words terms and expressions to Interpretation.
which by any Act in whole or in part incorporated with this Order
and by the Gas and Water Works Facilities Act 1870 meanings
are assigned have the same respective meanings unless there be
something in the subject or context repugnant to such construction
And in the construction of this Order or of any such Act for the
purposes of this Order the expression "the undertaking" shall mean
the undertaking of the Knottingley Gas Company authorised by the

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. Act of 1856 and the expression "the authorised rates" means the rates
Knottingley. of dividend authorised by this Order on the capital of the Undertakers
for the purposes of the undertaking or such rates as reduced or
increased in accordance with the provisions of this Order.

Undertakers.

Undertakers. 5. The Knottingley Gas Company shall be the Undertakers for
the purposes of this Order and are in this Order referred to as "the
Undertakers."

Capital.

Capital. 6. The share capital of the Undertakers shall be seventeen thousand
pounds consisting of the ordinary share capital already raised by the
Undertakers of six thousand six hundred pounds (hereinafter called
"the A capital") of further ordinary share capital of two thousand
two hundred pounds (hereinafter called "the B capital") to be issued
as in this section provided and of additional capital not exceeding
eight thousand two hundred pounds including any premium that
may be obtained on the sale of any shares or stock under the provisions
of this Order (in this Order called "the additional capital") to be
raised subject to the provisions of this Order by the creation and issue
of new ordinary shares or stock or new preference shares or stock or
wholly or partly by one of these modes and partly by another or others
of them but the Undertakers shall not issue any share in the additional
capital of a less nominal value than five pounds nor shall any such
share or stock vest in the person or corporation accepting the same
unless and until the full price of such share or stock including any
premium obtained upon the sale thereof shall have been paid in respect
thereof. Provided that it shall not be lawful for the Undertakers to create
and issue additional capital under the powers of this Order of any
greater nominal amount of share capital than will be sufficient to
produce including any premium which may be obtained on the sale
thereof the sum of eight thousand two hundred pounds.

The shares in the B capital shall be issued as fully paid up to
the persons who at the commencement of this Order are registered as
the holders of the shares in the A capital rateably according to their
respective holdings of such capital and save as in this Order other-
wise provided shares in the B capital shall be subject and entitled to
and shall be deemed to confer upon their holders all the same powers
provisions liabilities privileges rights and incidents as shares in the
A capital. Provided that nothing herein contained shall entitle any
shareholder to claim an allotment of any fraction of a share in the
B capital. All such shares as would but for this provision have been
distributable in fractional parts shall be sold by the Undertakers and
the net proceeds shall be divided amongst those shareholders who would
have been entitled to such fractions in their due proportions.

[2. & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

7. Except as by this Order otherwise provided the additional capital and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the additional capital were part of the capital of the Undertakers authorised by the Act of 1856 of the same class or description and the new shares or stock were shares or stock in that capital.

A.D. 1912.

Knottingley...

Privileges
 &c. of holders
 of additional
 capital.

8.—(1) All shares or stock in the additional capital authorised by this Order shall be issued in accordance with the provisions of this section.

Additional
 capital
 to be sold
 by auction
 or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the council of every district wholly or partially included within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
Knottingley.

as the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold, shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

Application
of money.

9. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

Restriction
as to votes
in respect
of prefer-
ence shares
or stock.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock in the additional capital to which a preferential dividend shall be assigned.

Profits and Reserve &c. Funds.

Profits of
Undertakers
limited.

11. Except as by this Order provided the profits of the Undertakers to be divided among the shareholders in any year shall not exceed the following rates (which are in this Order referred to as "the standard rates of dividend") that is to say On the A capital the rate of eight pounds in respect of every one hundred pounds of such capital and on the B capital the rate of five pounds in respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Order the rate of seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as shall be issued as ordinary capital and the rate of five pounds in respect of every one hundred pounds actually paid up of so much of such capital as shall be issued as preference capital.

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

A.D. 1912.

12. In case in any year (or half-year if the Undertakers pay a half-yearly dividend) the funds of the Undertakers applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each class.

Knottingley.
 Dividends on different classes of stock or shares to be paid proportionately.

13.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund called "the special purposes fund."

Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than, expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The money forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

14. If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year Provided that the fund standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates.

Application of excess of profits over authorised rates of dividend.

15. Where in any year the dividend of the Undertakers on the ordinary share capital of the Undertakers shall exceed the standard rates by reason of the price charged by the Undertakers for gas

Power to create a reserve fund and application thereof.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. in such year being below the standard price then out of the
Knottingley. amount of the divisible profits of the Undertakers applicable to the
payment of such excess of dividends the Undertakers may in such
year set apart such sum as they think fit by way of a reserve fund
and all sums (if any) so set apart by the Undertakers and any reserve
or other fund of a similar character of the Undertakers existing at
the commencement of this Order may be invested in Government
or other securities and the dividends and interest arising from such
securities may also be invested in the same or the like securities in
order that the same may accumulate at compound interest and the
fund so formed shall be called "the reserve fund" and shall be
applicable to the payment of dividends in any year in which the
clear profits of the Undertakers shall be insufficient to enable the
Undertakers in such year to pay the dividend at the authorised rates
on the ordinary capital of the Undertakers and save as by this
Order specially provided no sum shall in any year be carried by the
Undertakers to any reserve fund.

Interim
dividend.

16. The Undertakers may in any year without calling a meeting of
share or stock holders for the purpose declare an interim half-yearly
dividend out of the then ascertained profits of the Undertakers
Provided that the amount of any interim half-yearly dividend so
declared shall not exceed in any one half-year one half of the amount
of the standard rates of dividend.

Closing of
transfer
books
previous to
declaring
interim
dividend.

17. The Undertakers may close the register of transfers for a
period not exceeding fourteen days previous to the declaration of any
interim dividend and they may fix a day for closing the same of which
seven days' notice shall be given by advertisement in a newspaper
published in the west riding of the county of York and any transfer
made during the time when the transfer books are so closed shall as
between the Undertakers and the person claiming under the same but
not otherwise be considered as made subsequently to the declaration
of such dividend.

Borrowing Powers.

Power to
borrow.

18. The Undertakers may subject to the provisions of this Order
borrow on mortgage in respect of the share capital any sum or sums
not exceeding in the whole one-third part of the amount of the share
capital at the time actually issued by shares or stock including the
premiums (if any) realised on the sale thereof but no part thereof
shall be borrowed until the whole of the shares or stock in respect of
which the power of borrowing is being exercised including the premiums
(if any) realised on the sale thereof shall have been fully paid up
and the Undertakers have proved to the justice who is to certify under
the fortieth section of the Companies Clauses Consolidation Act 1845
before he so certifies that such shares and stock including the premiums

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

(if any) realised on the sale thereof have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1912.
Knottingley.

19. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Order created and issued or granted by the Undertakers under this or any subsequent Order or Act shall subject to the provisions of any subsequent Order or Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

20. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers on mortgage. For appointment of a receiver.

21. All money to be raised by the Undertakers on mortgage or by the issue of debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by the Undertakers after the commencement of this Order but this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock. Priority of mortgages and debenture stock over other debts &c.

22. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers. Receipt in case of persons not *sui juris*.

Price of Gas.

23. As from the first day of January 1913 section XVII. of the Act of 1856 shall be repealed and in lieu thereof the following Price of gas with sliding scale as to dividend.

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. provisions shall be in force and have effect. The standard price to be
Knottingley. charged by the Undertakers for gas supplied by them to private
consumers by ordinary meters shall be four shillings per thousand
cubic feet :

Provided that the Undertakers may increase or reduce the price
so charged by them for gas above or below the standard price subject
to a reduction or increase in the dividend payable by the Undertakers
on the ordinary share capital as follows :—

In respect of any year during any part of which the price charged
by the Undertakers shall have been one penny or part of a
penny above the standard price the dividend payable by the
Undertakers shall in respect of each penny or part of a penny
by which the price shall have been increased be reduced below
the standard rate of dividend by four shillings on every one
hundred pounds of ordinary paid-up capital with an eight per
centum standard rate of dividend and by three shillings and
sixpence on every one hundred pounds of ordinary paid-up
capital with a seven per centum standard rate of dividend and
by two shillings and sixpence on every one hundred pounds of
ordinary paid-up capital with a five per centum standard rate of
dividend and so in proportion for any fraction of one hundred
pounds ;

And in respect of any year during the whole of which the price
charged by the Undertakers shall have been one penny or more
below the standard price the dividend payable by the Undertakers
may in respect of each penny by which the standard price has been
reduced be increased above the standard rate of dividend by
four shillings on every one hundred pounds of ordinary paid-up
capital with an eight per centum standard rate of dividend and
by three shillings and sixpence on every one hundred pounds of
ordinary paid-up capital with a seven per centum standard rate
of dividend and by two shillings and sixpence on every one
hundred pounds of ordinary paid-up capital with a five per centum
standard rate of dividend and so in proportion for any fraction
of one hundred pounds.

Charge for
gas supplied
by means of
prepayment
meters.

24.—(1) The Undertakers may demand for any gas supplied
through a prepayment meter a not greater charge than for gas supplied
to private consumers within their limits of supply through any other
kind of meter or by any other method of supply.

(2) The Undertakers shall not charge for the hire of any prepay-
ment meter and fittings to be used therewith any sum other than a
sum of money calculated according to the quantity of gas supplied
through such prepayment meter and the maximum sum to be so
charged shall be at the rate of tenpence per one thousand cubic feet

supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove: A.D. 1912.
Knottingley.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Undertakers in connection with the meter and fittings.

(3) The Undertakers shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Undertakers in connection with the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Testing of Gas.

25. Sections XXIV. to XXVII. (both inclusive) of the Act of 1856 are hereby repealed and in lieu thereof the following provisions shall be in force and have effect:— Quality of
 gas.

(1) The prescribed number of candles shall be not less than fourteen:

(2) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be the testing place already provided by the Undertakers at their works or some other testing place to be provided by the Undertakers upon some part of their works in substitution for such testing place: Testing
 place.

(3)—(i) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871; Testing for
 quality.

(ii) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.
 —
 Knottingley.

standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Undertakers or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing;

(iii) The Undertakers shall within six months after the commencement of this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair:

Pressure

(4)—(i) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer;

(ii) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Saving as
 to penalties.

26. No penalty shall be incurred by the Undertakers for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Undertakers. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Undertakers.

Miscellaneous.

Fittings not
 to be subject
 to distress.

27. Any fittings let for hire under the provisions of the Act of 1856 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

Engines &c.
 though fixed
 to premises
 to remain

28.—(1) Subject as hereinafter provided all engines motors fittings apparatus and appliances of the Undertakers now out on hire or let by the Undertakers on hire shall notwithstanding that they be fixed

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such engines motors fittings apparatus and appliances are or shall be fixed.

A.D. 1912.

Knottingley.
 property of
 Undertakers.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors fittings apparatus and appliances as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

29. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and take up alter re-lay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
 lay pipes in
 streets not
 dedicated to
 public use.

30. The Undertakers may subject to the provisions of the Act of 1856 or this Order (but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein) contract for take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture storage supply utilisation or distribution of gas or the conversion manufacture or utilisation of any product obtainable in or arising from such manufacture or from the materials used therein.

Power to
 take
 licences for
 use of
 patents.

31. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply of gas in bulk to them respectively upon such terms and conditions and for such periods not exceeding in any case seven years from the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay down any mains or interfere with any street beyond the limits of supply.

Power to
 contract for
 sale of gas
 in bulk.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

Knottingley.

As to construction and placing of pipes &c. between mains and meters.

32. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter so far as the same are intended to be covered over:
- (2) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

33. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an efficient anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

A.D. 1912.

Knottingley.
 Anti-fluctua-
 tors for gas
 engines.

34. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer in writing or in person at the Undertakers' office before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur. Provided that notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Gas con-
 sumers to
 give notice to
 Undertakers
 before
 removing.

35. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers or be given personally at the office of the Undertakers.

Notice of
 discon-
 tinuance.

36. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

Period of
 error in
 defective
 meters.

37. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Power to
 refuse to
 supply per-
 sons in debt
 for other
 property.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 Geo. 5.]*
Act, 1912.

A.D. 1912.

Knottingley.
 Power to
 erect &c.
 cottages
 for officers
 and servants.

Undertakers
 to pay
 interest on
 deposits.

For protec-
 tion of Lan-
 cashire and
 Yorkshire
 Railway
 Company.

38. The Undertakers may on any land for the time being belonging to or leased by them erect fit up and maintain houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

39. Where any money is deposited by any person by way of security with the Undertakers for the payment by them of any moneys which may become due to them from such person in respect of any supply of gas or of the purchase or hire of any meter the Undertakers shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

40.—(1) Whenever in the exercise of the powers of this Order the Undertakers require to execute any work for the purpose of or in connection with the laying down taking up alteration or removal of any mains pipes or apparatus upon across or under any railway for the time being belonging to or worked by the Lancashire and Yorkshire Railway Company (in this section referred to as "the company") or the stations bridges approaches or other works thereof or to construct any works adjoining or in close proximity thereto they shall (except in cases of emergency) give to the engineer of the company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans.

(2) The said works including the making good and repairing of any roads over the railway and over any bridges and approaches which the company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Undertakers shall be laid constructed and executed by and at the expense of the Undertakers under the superintendence (if the same be given) and to the reasonable satisfaction of the said engineer and according to plans to be previously approved by him and so as to avoid as far as possible any injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station Provided that the approval of plans in pursuance of this subsection shall not in any case be unreasonably withheld and if the said engineer fails to signify his approval thereof within fourteen days after delivery he shall be deemed to have approved thereof.

(3) When the Undertakers open or break up any road or pavement of any street or bridge or other works belonging to or repairable by the company the Undertakers shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up.

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

(4) If the Undertakers make delay in completing any such work or reinstating and making good any such road and works so opened or broken up the company may cause the works so delayed to be executed and the reasonable expense of executing the same shall be repaid to them by the Undertakers.

A.D. 1912.

Knottingley.

(5) The Undertakers shall repay to the company the expense of any temporary works or watching which the company may reasonably consider necessary to provide for the protection of any such railway or the traffic thereon during the carrying out of any such works as aforesaid.

(6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Undertakers shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided.

(7) Any difference which may arise between the Undertakers and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

41. For the protection of the urban district council for the urban district of Knottingley (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Undertakers have effect (that is to say):—

For protec-
tion of
Knottingley
Urban
District
Council.

- (1) All mains pipes and works to be laid under the provisions of this Order in or along any street or road shall be laid and constructed by the Undertakers in such position at such depth and in such manner as the council in writing under the hand of their surveyor may reasonably direct:
- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets bridges sewers drains and tunnels shall as regards any street sewer bridge drain or tunnel (except in cases of emergency) be not less than seven clear days instead of three clear days and the plan required by section 9 of the last-mentioned Act shall accompany such notice:
- (3) Nothing in this Order shall interfere with the right of the council to alter the level of or deviate drain widen reconstruct or improve in any manner they think fit any street or road in or along which any mains pipes or works of the Undertakers shall have been laid and the Undertakers shall with all convenient speed on receiving seven

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Knottingley.

days' notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the council shall not be liable to make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of any such alteration deviation improvement or other work of the council Provided that before any such alteration deviation draining widening reconstruction or improvement be commenced the council shall give seven days' notice in writing to the Undertakers of their intention to carry out such works and during the continuance thereof the council shall at the cost of the Undertakers afford all reasonable facilities for temporarily carrying such mains pipes or works along the street or road so as not to interrupt the continual supply of gas or to diminish the pressure of such supply through such mains or pipes:

- (4) All works shall be so executed by the Undertakers as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any street or road and the Undertakers shall carry on such works in such manner that where reasonably practicable not more than one third of the width of the street or road is closed against traffic at any one time:
- (5) In case two thirds of the width of any street or road is insufficient to allow two carriages or vehicles to pass each other then the Undertakers shall not open or break up more than a fifty feet length of any street or road nor leave a less space than fifty feet between any two consecutive openings at any time without the consent of the council or their surveyor first had and obtained:
- (6) The Undertakers in opening or breaking up any street or road vested in the council shall do all work under the superintendence and to the reasonable satisfaction of the surveyor to the council or other the person from time to time appointed by the council for the purpose:
- (7) The Undertakers shall pay to the council the reasonable costs which the council may incur in the repair and reinstatement of so much of any street or road in which the main pipes or other works of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes or other works:

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

(8) If the Undertakers in the execution of any works in or affecting any street or road as aforesaid shall cause any damage injury or disturbance to such street or road and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the council after fourteen days' notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works reasonably necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the council all costs charges and expenses which the council shall reasonably and properly incur in carrying out such works :

A.D. 1912.
Knottingley.

(9) Whenever it shall be found necessary by the Undertakers to break up any street or road within the district of the council not dedicated to public use in which is laid any pipe drain sewer tunnel or other work vested in the council the like notice and plan as are respectively required by sections 8 and 9 of the Gasworks Clauses Act 1847 to be sent to a road authority shall be given to the council and if the council notify in writing to the Undertakers that any such pipe drain sewer tunnel or other work will or may be affected by the operations proposed to be carried out by the Undertakers in such street or road the provisions of the said Act shall apply for the protection of such pipe drain sewer tunnel or other work and of the council in reference thereto as though the council were the person having the control or management of such street or road within the meaning of the said Act :

(10) The price to be charged by the Undertakers for gas per thousand cubic feet for public lighting within the urban district of Knottingley shall in no case be higher than ten per centum below the general minimum charge per thousand cubic feet for the time being made by the Undertakers to private consumers for lighting purposes within such district :

(11) The council may at their own cost provide and maintain a testing place at the Town Hall Knottingley or at such other convenient place as the council shall decide with apparatus therein for testing the purity and illuminating power of the gas supplied by the Undertakers and such testing place shall be deemed to be a testing place in conformity with the Gasworks Clauses Act 1871 and sections 31 32 and 33 of that Act shall apply thereto Any gas examiner may at such testing place test the illuminating power purity and

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 Geo. 5.]*
Act, 1912.

A.D. 1912.

Knottingley.

pressure of the gas supplied by the Undertakers at all reasonable times upon giving to the Undertakers two hours previous notice in writing:

- (12) If any difference arises at any time between the council and the Undertakers touching this section or anything to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by the arbitration of an engineer to be agreed upon between the council and the Undertakers and failing agreement to be appointed by the Board of Trade on the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

For protec-
tion of Aire
and Calder
Navigation.

42. For the protection of the Undertakers of the Aire and Calder Navigation (hereinafter called "the Canal Company") the following provisions unless otherwise agreed in writing between the Undertakers and the Canal Company shall have effect:—

- (1) The Undertakers shall not in exercise of the powers conferred by the Act of 1856 or this Order or the Acts incorporated therewith respectively lay any main pipe or other work over or across any canal belonging to the Canal Company (hereinafter called "the canal") or the towing-path thereof or other property of the Canal Company except in the roadway of a fixed bridge carrying a public road over the same:
- (2) No injury to or interference with the structure of any bridge belonging to the Canal Company or to or with the canal or other property of the Canal Company nor interruption to the traffic on the canal or towing-path shall be occasioned in the laying maintenance repair renewal relaying or enlarging of any main pipe or work of the Undertakers:
- (3) All works in relation to the laying and except in cases of emergency in relation to the maintenance repair renewal relaying or enlarging of any main pipe or work of the Undertakers across any bridge belonging to the Canal Company or in or under the approaches thereto so far as the same are maintainable by the Canal Company (other than works in relation to the maintenance repair renewal or relaying of any existing main pipe or work of which the character and position are not altered) shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Canal Company and according to plans and sections submitted to and reasonably approved by him before the work is commenced. Provided that if the said engineer shall not signify his approval or disapproval of such plans and sec-

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

tions within twenty-one days after the same shall have been submitted to him he shall be deemed to have approved thereof. Provided further that in the case of works in respect of which plans and sections are not by this subsection required to be submitted the Undertakers shall give to the said engineer notice of their intention to carry out such works:

A.D. 1912.

Knottingley.

- (4) If in the laying maintenance repair renewal relaying or enlarging of any main pipe or other work of the Undertakers or by reason or in consequence of the failure or want of repair thereof any such injury interference or interruption as is mentioned in subsection (2) of this section shall be occasioned the Undertakers shall compensate the Canal Company in respect thereof:
- (5) If by reason or in consequence of damage or subsidence caused by underground workings the Canal Company at any time require (of which requirement they shall be the sole judges) to carry out works for the rebuilding alteration raising or repair of any bridge over the canal or the approaches thereto so far as maintainable by the Canal Company across or along which any main pipe or other work of the Undertakers is laid and if in order to avoid interruption to the supply of gas by the Undertakers in the execution of any such works it is in the opinion of the engineer of the Canal Company necessary to alter the position of any such main pipe or other work or to remove the same temporarily then the Undertakers shall at their own expense alter the position of such main pipe or other work to such other position on the said bridge or in the said approaches thereto as the said engineer may reasonably require or shall at the like expense if so required by such engineer temporarily carry the same across such bridge or at the side thereof in such manner as the said engineer shall reasonably approve and the Canal Company shall not be liable to make compensation to the Undertakers for any damage which the Undertakers may sustain by reason of such alteration or removal:
- (6) Nothing in this section shall prejudice or affect the provisions of section 28 (Saving rights of Undertakers of navigation of rivers Aire and Calder) of the Act of 1856:
- (7) Any dispute or difference which may arise between the Undertakers and the Canal Company with reference to the provisions of this section or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed in default

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

Knottingley.

of agreement by the Board of Trade on the application of the Undertakers or the Canal Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Differences
with road
authority
&c.

43. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of the Act of 1856 or this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works or to the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Recovery of
demands.

44. Proceedings for the recovery of any demand made under the authority of the Act of 1856 or this Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Authentica-
tion and
service of
notices.

45. Any notice to be served by the Undertakers on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other duly authorised officer of the Undertakers being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas by the name either of the secretary or of a collector or other duly authorised officer of the Undertakers being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of
penalties &c.

46. Save as otherwise by this Order expressly provided all offences against the Act of 1856 or this Order and all penalties forfeitures costs and expenses imposed or recoverable under the Act of 1856 or this Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Costs of
Order.

47. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Order and otherwise in relation thereto shall be paid by the Undertakers.

THURLES GAS.

A.D. 1912.

Order empowering the Thurles Gas Company Limited to maintain and continue gasworks and to manufacture and supply gas within the urban district of Thurles and adjacent parishes in the county of Tipperary and for other purposes.

Thurles.

1. This Order may be cited as the Thurles Gas Order 1912. Short title.
2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.
3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by this Order and the said provisions of the said Gasworks Clauses Acts shall apply as well to the mains pipes and works of the Undertakers laid down or constructed before the commencement of this Order and situate within the limits of supply as defined by this Order as to any mains pipes or works which may be laid down or constructed under the authority of this Order. Provided that for the purpose of such incorporation section 13 of the said Gasworks Clauses Act 1847 shall be read and construed as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section. Incorporation of Acts.
4. In this Order the expression "the authorised rates" means the rates of dividend authorised by this Order on the capital of the Undertakers or such rates as reduced or increased in accordance with the provisions of this Order. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and in the construction of this Order or of any such Act for the purposes of this Order the expression "the council" means the urban district council of Thurles and "the undertaking" shall include the gasworks and works connected therewith by this Order authorised to be maintained and continued. Interpretation.
5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") Limits of Order.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912. shall be the townlands comprised in the parish of Thurles in which
Thurles. is included the urban district of Thurles which townlands are Ardbaun
Ballycarrane Ballygammane Bawnanattin Bawntameena Bohernamona
Bowling-Green Brittas Brittasroad Carrigeen Clongower Commons
Farranreigh Furze Garryvicleheen Glebe Glengarriff Gortataggart
Gortnaglogh Grange Killinane Kilrush Knockauns Knockcurra Knockeen
Laghtagalla Lewaghbeg Lewagh-More Liscahill Lognafulla Loughlahan
Monacocka Monakeeba Monanearla Mullaunbrack Mullauns Racecourse
Rathcooney Sheskin Stradavoher The Heath Thurles-Townparks Toor
Tooreen Wrensborough and so much of Turtulla as is within the rural
district of Thurles all in the parish of Thurles and in the county of
Tipperary.

Undertakers.

Undertakers. .6. The Thurles Gas Company Limited shall be the Undertakers
for the purposes of this Order and are in this Order referred to as
“the Undertakers.”

Capital.

Capital. 7. The share capital of the Undertakers shall not for the purposes
of the undertaking exceed eleven thousand pounds consisting of the
original share capital already raised by the Undertakers (in this
Order referred to as “the original capital”) amounting to five thousand
one hundred and thirty-one pounds of which five thousand pounds are
ordinary shares and one hundred and thirty-one pounds are preference
shares and of additional capital (in this Order referred to as “the
additional capital”) to be issued subject to the provisions of this
Order not exceeding five thousand eight hundred and sixty-nine pounds
including any premiums which may be obtained on the sale of any
shares or stock under the provisions of this Order unless the Under-
takers are hereafter authorised to raise for such purposes further
additional capital by Provisional Order under the Gas and Water
Works Facilities Act 1870 or by Act of Parliament.

Additional capital to be sold by auction or tender. 8.—(1) All shares or stock forming part of the additional capital
shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale
by public auction or tender in such manner at such times and subject
to such conditions of sale as the Undertakers shall by special resolution
determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the
clerk of the council and to the committee of the Dublin
Stock Exchange at least twenty-eight days before the day
of auction or the last day for the reception of tenders as
the case may be and shall also be duly advertised once in

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. cli.]
Act, 1912.

each of two consecutive weeks in one or more local newspapers circulating within the limits of supply: A.D. 1912.

Thurles.

- (B) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in manner prescribed by resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this Order and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Thurles.

(6) In case the Undertakers shall institute a co-partnership scheme whereby the employees of the Undertakers will become holders of shares or stock in the capital of the Undertakers notwithstanding anything herein to the contrary contained shares or stock in the additional capital to such an amount as the trustees appointed under such scheme certify in writing is required at that date for the purposes of and under the provisions of such co-partnership scheme may be offered and issued to the employees of the Undertakers or to trustees in trust for such employees at the highest price obtained for the shares or stock as the case may be at the next preceding sale of such shares or stock according to the books of the Undertakers.

Application
of money.

9. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
capital.

10. Except as by this Order provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the original and additional capital than the standard rates of dividend hereinafter mentioned namely ten pounds in respect of every one hundred pounds actually paid up of so much of the original capital as is ordinary capital and six pounds in respect of every one hundred pounds of so much of the original capital as is preference capital and seven pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Limits of
borrowing
powers.

11. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Dividends
on different
classes of
shares to
be paid pro-
portionately.

12. In case in any year or in any half-year when a half-yearly dividend is declared the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the authorised rates on each class of ordinary shares in the original and additional

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class. A.D. 1912.

Thurles.

Purchase of Lands.

13. The Undertakers may for the purposes of the undertaking purchase take on lease (by agreement but not otherwise) and hold in addition to the lands described in Schedule A. to this Order annexed any lands which they may require Provided that they shall not at any time hold for such purposes more than three acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedule.

Power to purchase additional lands.

Maintenance and Continuance of Gasworks Manufacture and Sale of Gas Coke and Residual Products.

14. The Undertakers may on the lands described in Schedule A. to this Order annexed while they are possessed of the same maintain and continue alter enlarge extend improve renew or discontinue their existing gasworks and works connected therewith and may construct erect make and maintain alter and enlarge retorts gasholders receivers purifiers meters apparatus and works for the manufacture and storing of gas and of coke asphaltum pitch coal-tar ammoniacal liquor oil and residual products obtained in the manufacture of gas and matters producible therefrom and they may subject to the provisions of this Order make and store gas and supply and sell the same within the limits of supply and may on the same lands manufacture and store residual products as aforesaid and may sell and dispose of the same at their works and elsewhere and they may also erect construct and maintain alter enlarge extend and renew or discontinue houses offices buildings and other works connected with the undertaking.

Undertakers may maintain and continue gasworks on lands described in Schedule A and may make and sell gas &c.

15.—(a) Subject to the provisions in this section contained the Undertakers may purchase or hire and supply sell let on hire and fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration and charges and make such terms and conditions as may be agreed upon.

Power to supply gas fittings &c.

(b) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. be liable to be taken in execution upon process of any court or any
Thurles. proceedings in bankruptcy against the persons in whose possession the
same may be. Provided that such fittings are marked or impressed
with a sufficient mark or brand indicating the Undertakers as the
actual owners thereof.

Power to take 16. The Undertakers may subject to the provisions of this Order
licences for (but only for the purposes of the undertaking within the limits of
use of patents. supply and not so as to acquire any exclusive right therein) contract
for take acquire and use any leave licence or authority to work use
exercise and put in practice any invention under letters patent hereto-
fore made or hereafter to be made granting any right or privilege of
working using or vending any invention in relation to the manufac-
ture supply and distribution of gas or the conversion manufacture or
utilisation of any products obtainable in or arising from such manu-
facture or from the materials used therein.

Undertakers 17. The Undertakers may contract with any local authority com-
may contract pany or persons authorised to supply gas under parliamentary powers
for sale of in any district adjacent to the limits of supply for the supply to them
gas in bulk. respectively of gas in bulk upon such terms and conditions and for
such periods not exceeding in any case twenty-one years from the
making of the contract as shall be agreed upon but nothing in this
section shall authorise the Undertakers to lay any mains or interfere
with any street beyond the limits of supply.

Differences 18. If any difference arise between the Undertakers and any road
with road authority or railway canal or other company whose lands or works
authorities the Undertakers have power to cross under the authority of this Order
railway or as to the mode of laying down repairing altering or enlarging their
other com- mains pipes or other works in over or upon any road under the
panies. jurisdiction of such road authority or in over or upon such lands
or works or the facilities to be afforded for the same such difference
shall be settled by an engineer or other fit person to be appointed
by the Board of Trade at the request of either party.

Price of Gas.

Price of gas. 19.—(1) The price to be charged by the Undertakers for gas
supplied by them shall not exceed five shillings and fourpence per
thousand cubic feet and so in proportion for any less quantity
supplied.

(2) Provided that at any time after the expiration of three years
from the commencement of this Order the Board of Trade may if they
think fit by order in writing signed by a secretary or an assistant
secretary of the said Board alter the said maximum price either by
substituting any other sum for the said sum of five shillings and
fourpence or upon an application make by the Undertakers with the

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

consent of the Council by fixing a standard price with sliding scale as to profits and as from the date specified in such Order (hereinafter referred to as "the specified date") the provisions set forth in Schedule B. to this Order annexed shall be in force and have effect and this Order shall be read and construed accordingly.

A.D. 1912.

Thurles.

(3) A copy of any such order made by the Board of Trade shall be published in the Dublin Gazette and a copy of the said gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

(4) The Undertakers shall not charge a higher price per thousand cubic feet for gas supplied to the council than the lowest rate per thousand cubic feet for the time being charged by them to any private consumer for lighting within the limits of supply.

(5) The price to be charged by the Undertakers for gas supplied by them during the period of three years from the commencement of this Order shall not exceed four shillings and ninepence per thousand cubic feet for gas used for cookers and engines and so in proportion for any less quantity supplied.

(6) If upon an inspection of the books of the Undertakers under the provisions of this Order it appears that the profits of the Undertakers in any year have exceeded the sum necessary to pay the dividends at the authorised rates the Undertakers shall in case the whole of the reserved fund has been and then remains invested and in case dividends at the authorised rates have been paid make a rateable reduction in the price of gas for the following year in proportion to the profits earned over and above the authorised rates of dividend but so that such reduced price shall for the following year ensure the Undertakers a profit as near as may be to the authorised rates.

20.—(1) The Undertakers may charge for any gas supplied through a prepayment meter a charge not greater than for gas supplied to ordinary private consumers through any other kind of meter or by any other method of supply.

Charges for
gas supplied
by means of
prepayment
meters.

(2) The Undertakers shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet so supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. and other costs incurred by the Undertakers in connection with the
Thurles. meter and fittings.

(3) The Undertakers shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Undertakers in connection with the meter.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Pressure and Quality of Gas.

Pressure of
gas.

21.—(1) All gas supplied by the Undertakers to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Order subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Undertakers shall afford to the examiner all reasonable facilities for making the test.

Testing
place.

22. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Undertakers on the lands described in Schedule A. to this Order annexed within three months after the receipt of a notice in writing from the council requiring the same to be provided.

Testing for
quality.

23.—(1) The quality of the gas supplied by the Undertakers shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [[Ch. clii.]
Act, 1912.

the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Undertakers or the council approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

A.D. 1912.

Thurles.

(3) The Undertakers shall provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

Miscellaneous.

24. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by them without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pay the same.

Power to refuse to supply persons in debt for other property.

25. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer in writing or in person at the Undertakers' office before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply gas to such premises whichever shall first occur Notice of the provisions of this section shall be endorsed upon every demand note for gas charges payable to the Undertakers.

Gas consumers to give notice to Undertakers before removing.

26. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Undertakers or be given personally at the office of the Undertakers.

Notice of discontinuance.

27. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in like manner as gas charges are recoverable by the Undertakers.

Period of error in defective meters.

28. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an

Anti-fluctuators for gas engines.

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. effective anti-fluctuator and shall at all times at his own expense keep
Thurles. such anti-fluctuator in proper order and if any consumer shall make
 default in complying with the provisions of this section the Undertakers
 may cease to supply him with gas The Undertakers shall have access
 to and be at liberty to take off remove test inspect and replace any
 such anti-fluctuator at all reasonable times such taking off removal
 testing inspecting and replacing to be done at the expense of the
 Undertakers if the anti-fluctuator be found in proper order but other-
 wise at the expense of such consumer.

No penalty 29. No penalty shall be incurred by the Undertakers for insuffi-
 in case of un- ciency of pressure defect of illuminating power or for excess of impurity
 avoidable in the gas supplied by them in any case in which it is proved that
 cause. such insufficiency defect or excess was produced by any circumstances
 beyond the control of the Undertakers Provided that the want of
 sufficient funds shall not be held to be a circumstance beyond the
 control of the Undertakers.

Undertakers 30. Where any money is deposited by any person by way of
 to pay security with the Undertakers for the payment to them of any moneys
 interest on which may become due to them by such person in respect of any
 deposit. supply of gas the Undertakers shall pay interest at the rate of five
 pounds per centum per annum on every sum of ten shillings
 deposited by way of such security for every six months during which
 the same remains in their hands.

Proofs of 31. Section 140 (Proofs of debts in bankruptcy) of the Companies
 debts in Clauses Consolidation Act 1845 shall be and is hereby incorporated
 bankruptcy. with this Order Provided that for the purpose of such incorporation
 the expression "the company" in the said section shall be construed
 to mean the Undertakers.

Time for 32. Notwithstanding anything contained in section 35 of the
 making up Gasworks Clauses Act 1871 the annual statement of accounts of the
 and forward- Undertakers shall be made up to the first day of June in each year
 ing accounts and forwarded to the local authority of every district within the limits
 to local of supply on or before the first day of September next following and
 authorities. the said section shall for the purposes of this Order be read and con-
 strued as though in lieu of the thirty-first day of December and
 twenty-fifth day of March being named therein the first day of June and
 the first day of September had been so named The council shall be
 entitled to cause inspection of the Undertakers' books annually by
 a qualified chartered or incorporated accountant.

Re-instate- 33. The Undertakers in the event of their laying new mains shall
 ment of roads restore the roads to the satisfaction of the town surveyor and if
 and payment found necessary pay for re-steamrolling portions of road or street
 for repairs of interfered with also to take every reasonable precaution towards not
 same. interfering with the trade or traffic of the town.
 Precautions for prevention of
 interference with trade or
 traffic.

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

34. If the council shall within five years from the commencement of this Order apply for statutory powers either by Bill in Parliament or Provisional Order to enable them to purchase the undertaking of the Undertakers the Undertakers shall not oppose such Bill or Provisional Order except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to the price to be paid and to the method and conditions of payment for such purchase and for that purpose the Undertakers shall be at liberty to petition either or both Houses of Parliament or the Local Government Board for Ireland and to appear on such petition by counsel agent and witnesses as they think fit and if the council obtain an Act or Provisional Order authorising such purchase and give a written notice of their intention to purchase within six months of the passing of such Act or confirmation of such Provisional Order the Undertakers shall at the expiration of such six months sell and transfer and the council shall purchase and acquire the undertaking property rights powers and privileges of the Undertakers subject to all their existing mortgages obligations and liabilities.

A.D. 1912.
Thurles.
 Purchase of
 undertaking
 by council.
 Conditions of
 opposition by
 Undertakers.

Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Undertakers and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Undertakers For the purposes of this section the expression "Lands Clauses Acts" in this section shall (notwithstanding anything contained in the section of this Order whereof the marginal note is "Incorporation of Acts" or the Interpretation Act 1889) not include the Railways Act (Ireland) 1851 the Railways Act (Ireland) 1860 the Railways Act (Ireland) 1864 or the Railways Traverse Act or any other Act for the time being in force amending such Acts:

Provided that in assessing the sum to be paid by the council to the Undertakers the value of the undertaking shall not be deemed to be enhanced or reduced by reason of the making of this Order but in addition to the sum to be paid by the council to the Undertakers under the foregoing provisions of this section the council shall pay to the Undertakers the costs charges and expenses of and incident to obtaining this Order and winding up the Undertakers.

35. In the event of the council proceeding to obtain a Provisional Order or other necessary powers to instal a system of electric lighting the Undertakers shall not oppose the same in any way directly or indirectly except so far as may be necessary in order to secure the

Undertakers
 not to oppose
 powers of
 council to in-
 stal electric
 lighting.

[Ch. clii.] *Gas Orders Confirmation (No. 1) [2 & 3 GEO. 5.]*
Act, 1912.

A.D. 1912.

Thurles.

insertion therein of clauses to protect the property of the Undertakers or permit any servant or official of the Undertakers to oppose the same in any way directly or indirectly.

Costs of
Order.

36. All the costs charges and expenses of and incident to the applying for preparing obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Undertakers.

SCHEDULES referred to in the foregoing Order.

SCHEDULE A.

GAS LANDS.

A piece of land with gasworks and other buildings thereon situate in the urban district of Thurles in the parish of Thurles in the county of Tipperary in the occupation of the Undertakers containing by admeasurement 1,900 square yards or thereabouts fronting to the north-west in Stradavoher Street about 300 yards from West Gate.

SCHEDULE B.

The foregoing Order shall after the making by the Board of Trade of an order in pursuance of the provisions in that behalf therein contained prescribing a standard price for gas supplied by the Undertakers with sliding scale as to profits and as from the specified date be read and construed subject to the modifications following:—

Sections 30
to 34 of Gas-
works Clauses
Act 1847 to
cease to be
incorporated.

- (1) Sections 30 to 34 (both inclusive) of the Gasworks Clauses Act 1847 shall not continue to be incorporated with or to form part of the foregoing Order and in construing the said Act for the purposes of the foregoing Order section 35 of the said Act shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the expression "the prescribed rate" included the authorised rates as defined by the foregoing Order together with any sum which under the provisions of this schedule might lawfully be carried to the special purposes fund:

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

- (2) Notwithstanding anything contained in the foregoing Order the standard price to be charged by the Undertakers for gas supplied by them to private consumers by meter shall be the price prescribed by such order of the Board of Trade as aforesaid per thousand cubic feet: A.D. 1912.
Thurles.
 Price of gas with sliding scale as to dividend.

Provided that the Undertakers may increase or reduce the price so charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Undertakers on the ordinary capital of the Undertakers as follows:—

In respect of any year during any part of which the price charged by the Undertakers shall have been one penny or part of a penny above the standard price the dividend payable by the Undertakers shall in respect of each penny or part of a penny by which the price shall have been increased be reduced below the standard rates of dividend by five shillings on every one hundred pounds of the original capital of the Undertakers issued as ordinary capital and by three shillings and sixpence on every one hundred pounds of the additional capital of the Undertakers issued as ordinary capital and so in proportion for any fraction of one hundred pounds;

And in respect of any year during the whole of which the price charged by the Undertakers shall have been one penny or more below the standard price the dividend payable by the Undertakers may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates of dividend by five shillings on every one hundred pounds of the original capital of the Undertakers issued as ordinary capital and by three shillings and sixpence on every one hundred pounds of the additional capital of the Undertakers issued as ordinary capital and so in proportion for any fraction of one hundred pounds:

- (3)—(i) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called “the special purposes fund”; Power to create a special purposes fund.
- (ii) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Undertakers or appointed

[Ch. clii.] *Gas Orders Confirmation (No. 1)* [2 & 3 GEO. 5.]
Act, 1912.

A.D 1912.
Thurles.

for the purpose by the Board of Trade shall approve as being—

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works;

(iii) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums;

(iv) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other;

(v) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section:

Application
of excess of
profits over
authorised
rates of
dividend.

(4) If the clear profits of the undertaking of the Undertakers in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year:

Provided that the sum so carried forward shall not in any case exceed the amount required to pay one year's dividend at the authorised rates:

Power to
create a
reserve fund
and applica-
tion thereof.

(5) When in any year the dividends on the ordinary capital of the Undertakers exceed the standard rates by reason of the price charged by the Undertakers for gas in such year being below the standard price then out of the profits which the Undertakers may make in excess of the standard rates the Undertakers may in such year set apart such sum as they think fit by way of reserve fund and all sums (if any) so set apart by the Undertakers and any reserve or other fund of a similar character of the Undertakers existing at the specified date in relation to the undertaking may be invested in securities in which trustees are for the time being authorised by law to invest money and the

[2 & 3 GEO. 5.] *Gas Orders Confirmation (No. 1)* [Ch. clii.]
Act, 1912.

dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Undertakers shall be insufficient to enable the Undertakers in such year to pay the authorised rates and save as by this schedule specially provided no sums shall in respect of the undertaking in any year be carried by the Undertakers to any reserve fund.

A.D. 1912.

Thurles.

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